

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: Personal and non-personal services sole-source bridge contract for the following skillsets: (personal service) physician, physician assistant, nurse practitioner, licensed vocational nurse, licensed clinical social worker, optometry technician, audiology technician, phlebotomist, laboratory technician, nurse assistant, (non-personal services) medical records clerk and administrative assistant (58 total full-time equivalents (FTE)) in support of the Soldier Readiness Program (SRP) at William Beaumont Army Medical Center (WBAMC) Fort Bliss, Texas.

Authority: 41 United States Code 3304(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(B), only one responsible source and no other supplies or services will satisfy agency requirements.

Amount: \$8,303,220.00 (includes 52.217-8, "Option to Extend Services")

Prepared by:

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Title: Contract Specialist Date: 22 January 2025

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Contracting Officer:

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Date Reviewed: 22 January 2025 E-Mail: jacquelyn.a.johnson14.civ@health.mil

Technical Representative:

Typed Name: Bobby Chandler DSN: 915.637.2893

Title: Contracting Officer's Representative Date Reviewed: 22 January 2025

Requirements Representative:

Typed Name: Beverly A. Stephens DSN: 915.742.3771

Title: Chief, Medical Readiness SRP

Date Reviewed: 22 January 2025

Controlled by: USAHCA

Controlled by: MRCO-W

CUI Category: Procure

Limited Dissemination Control: FED ONLY

POC: Troy A. Loge

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Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name: Frank Yoon

Phone: 801.660.0472

Signature: _____

Date: _____

Justification and Approval
for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity: Medical Readiness Contracting Office – West (MRCO-W), Fort Bliss Branch, Fort Bliss, Texas.

2. Description of Action: MRCO-W intends to issue a personal and non-personal services sole-source bridge contract for the following skill sets: (personal services) physician, physician assistant, nurse practitioner, licensed vocational nurse, licensed clinical social worker, optometry technician, audiology technician, phlebotomist, laboratory technician, nurse assistant, (non-personal services) medical records clerk and administrative assistant, for a total of 58 FTEs in support of the SRP at WBAMC, Fort Bliss, TX. This action will be accomplished with a firm, fixed price (FFP) contract funded with Defense Health Program (DHP) funds.

3. Description of Supplies/Services: MRCO-W has a requirement to continue personal and non-personal services of the above-described skill sets. A FFP bridge contract is contemplated for a six-month base period (1 April - 30 September 2025), a six-month option (1 October 2025 – 31 March 2026), and a maximum six-months extension IAW FAR 52.217-8, for a total performance period through 30 September 2026. Estimated value for the six-month base and six-month option is \$5,535,480.00. The total estimated contract value is \$8,303,220.00 to include the extension of services, should it be needed.

4. Authority Cited: 41 United States Code 3304 as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(B), only one responsible source and no other supplies or services will satisfy agency requirements.

5. Reason for Authority Cited: Bridge contract W81K0024P0002 is currently in place for these personal and non-personal services at SRP, WBAMC; the contract includes FAR Clause 52.217-8, Option to Extend Services. The contract will expire 31 March 2025.

The purpose of this bridge contract is to allow time to recompet the recently protested and terminated indefinite delivery, indefinite quantity (IDIQ) contract W81K0023D0001. This will be the fifth such bridge contract for this purpose.

These personal and non-personal services are critical to the mission of the WBAMC SRP. Due to urgency, a sole-source bridge contract is necessary to ensure continuation of these critical services until the follow-on contract can be made effective. The IDIQ contract W81K0023D0001 was competitively awarded to an 8(a) small business. A US Court of Federal Claims (CoFC), post-award protest was received 14 February 2023 and ultimately the contract was terminated for the government's convenience 28 March 2024. Due to the time frame, it would be impossible for a new contractor to come in and

be able to perform by the required start dated of 1 April 2025. This bridge contract will allow the government to properly solicit and award a new follow-on IDIQ contract.

There are certain barriers that make it impossible for another source to perform the government's requirement. First, the requirement is for 13 separate specialties of 58 FTEs and the anticipated timeframe to have this many personnel on the ground and working is at least 90 days because of the amount of time it would take to recruit, credential, privilege, train, and place this many healthcare providers. Second, a lapse in service would have an immediate negative impact and mission failure in providing current health care operations and current health care services to our civilians and soldiers to properly process and deploy anywhere in the world needed to defend the nation and support any mission set forth by the President of the United States. The incumbent contractor, Magnificus Corp., can provide the required services immediately upon award of this bridge contract because Magnificus Corp. is the only contractor that already has all the required healthcare employees recruited, credentialed, privileged, trained and in place to perform the required services. Magnificus Corporation is performing the requirements satisfactorily based on the monthly surveillance reports submitted by the contracting officer's representative (COR).

6. Efforts to Obtain Competition: Based on the need and the ongoing process of awarding the long-term contract, the required start date is 1 April 2025 for this bridge contract. The current contract will expire 31 March 2025.

a. Effective Competition: Magnificus Corp. is the only vendor capable of meeting the government's urgent requirement with a start date of 1 April 2025 while the government continues re-procurement of a follow-on IDIQ contract.

b. Subcontracting Competition: In accordance with FAR Subpart 19.705-2, the Contracting Officer has taken actions to determine whether the proposed contractual obligation requires a sub-contracting plan. According to Small Business Administration (SBA) Dynamic Small Business Search (DSBS), the proposed contractor, Magnificus Corporation is a small business. A sub-contracting plan will not be required.

7. Actions to Increase Competition: It is not possible to compete this proposed bridge contract in time for service to commence 1 April 2025. However, MRCO-W had awarded W81K0023D0001 as an 8(a) set-aside for small business and will likewise compete the subsequent follow-on contract to 8(a) contractors.

8. Market Research: Market research was conducted 22 January 2025, and there are capable service providers in the market who currently provide these services however, in this instance, award to any vendor other than Magnificus Corp. would be detrimental to healthcare services of the SRP, WBAMC, resulting in unacceptable mission failure in providing current health care operations and current health care services to our soldiers and civilians to properly process and deploy anywhere in the world needed to defend

the nation and support any mission set forth by the President of the United States. A vendor other than Magnificus Corp. currently in place and providing services would equal mission failure.

9. Interested Sources: There are interested sources for this requirement; however, these sources are not being considered for the bridge contract due to the short timeline required to certify and train staff and security clearance/background checks. Competing this requirement at this time will cause an interruption in very critical services, which could cause harm to soldiers and civilians that would not be in the best interest of the government. It will cause complete mission failure to SRP, WBAMC. It is in the best interest of the government to extend the bridge contract to the current contractor; Magnificus Corp. who is currently providing services and will be able to continue performing services without disruption to the SRP, WBAMC at Fort Bliss, Texas.

10. Other Facts:

a. Procurement history.

WBAMC:

Bridge – W81K0024P0002:

1. Total dollar value is \$6,843,511.82 as of modification P00006
2. Period of performance 1 January 2024 - 31 March 2025
3. Competitive Status of these actions: N/A
4. Authority previously cited if less than full and open competition was used: FAR 13.501(a)(1)(ii), sole source under the authority of the simplified procedures for certain commercial items.
5. There have been no significant changes since the last bridge contract was awarded. The requested services were bridged because it was not possible to compete the proposed acquisition in time for services to begin 1 January 2024. The follow-on contract was awarded and underwent a CoFC, post-award protest, Case 23-218c. Due to corrective action, continuing another extension was necessary. The long-term, follow-on contract will be a single-award, IDIQ contract.
6. If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources. N/A
7. An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys. N/A

8. If a justification was prepared to support procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes. The purpose of bridge contract W81K0024P0002 is to allow time for the CoFC-level protest to be resolved and, if necessary, allow time for a contract to be solicited and awarded (Control #24-RHCO-C-102). There have not been any significant changes.

b. Other Facts. The Performance Work Statement (PWS) for this contract is essentially the same as the PWS for the current contract and may include changes to points of contact and those required by law or regulation.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Bobby Chandler Title: Contracting Officer's Representative

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Beverly A. Stephens Title: Chief, Medical Readiness SRP

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the government for this contract action will be fair and reasonable. Fair and reasonable pricing will be determined by using price analysis and the Independent Government Estimate. As part of the basis certified cost or pricing data is not required per FAR 15.403-I(b)(3).

Signature: _____ Date: _____

Typed Name: Jacquelyn A. Johnson Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Jacquelyn A. Johnson Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of personal and non-personal services of the following skillsets: (personal services) physician, physician assistant, nurse practitioner, licensed vocational nurse, licensed clinical social worker, optometry technician, audiology technician, phlebotomist, laboratory technician, nurse assistant, (non-personal services) medical records clerk and administrative assistant, for a total of 58 FTEs in support of SRP, WBAMC, Fort Bliss, Texas. This service is provided at WBAMC, Fort Bliss, TX, for a six-month base with a six-month option of \$5,535,480.00 and total of \$8,303,220.00 to include up to a six-month extension of services, should it be needed, for this bridge contract on an other than full and open competition basis pursuant to the authority of 41 United States Code 3304 as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(B), only one responsible source and no other services will satisfy agency requirements, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Signature: _____ Date: _____

Typed Name: Cicely Simmons-Carroll Title: Command Advocate for Competition